

Registering Copyright in Rounds Codex

A step-by-step guide to filing with the U.S. Copyright Office before launch, plus what is and is not worth protecting another way. Prepared 3 August 2026.

This is general information, not legal advice.

Everything here comes from the U.S. Copyright Office's own published circulars and fee schedule, and it describes a form you can file yourself. But three decisions in this process are genuine judgement calls with real consequences - whether your site counts as "published", how to describe AI-assisted material, and what to file as one work versus several. An hour with an IP attorney before you file is cheap next to a registration that is later held invalid.

Verify all fees at copyright.gov/about/fees.html before paying. They change.

1. Read this first: the AI disclosure rule

This is the part of the process most likely to cause you a problem, and it is specific to how Rounds Codex was built.

Since March 2023 the Copyright Office has taken the position that material generated by artificial intelligence, without sufficient human creative control over the expression, is **not copyrightable**. A human being must be the author. When you apply, you have an affirmative **duty to disclose** AI-generated material that is more than trivial, and to exclude it from your claim in the "Limitation of Claim" section of the form.

Failing to disclose is not a technicality. The Office can cancel a registration obtained on an inaccurate application, and a defendant in an infringement case will look for exactly this. A registration you cannot rely on is worse than none, because you will have relied on it.

Where this touches Rounds Codex specifically

Two large parts of the app were produced with AI assistance and need to be handled deliberately:

The gallery artwork. The 800 illustration pages were produced through an AI generation pipeline. Raw AI output is not yours to claim. Your *selection, ordering, editing and arrangement* of those pages into teaching galleries almost certainly is.

The question banks. Of the 1,820 condition quiz questions, 24 were transcribed from your own PDFs; the rest were drafted by AI from the module text. The same split applies.

The practical answer is usually not to abandon the claim. It is to file a claim in what a human authored - the written module text you wrote, the compilation, the selection and arrangement, and your edits - and to disclaim the AI-generated material in the exclusion field. That is what the Office did in the well-known "Zarya of the Dawn" decision: the text and the arrangement were registered, the AI images were not.

Before you file, write down which parts are human-authored and which are not. You cannot fill the form honestly without that list, and only you know it.

2. Why bother, if copyright is automatic?

You already own the copyright. It attached the moment each part was fixed in a tangible form, with no paperwork. Registration does not create the right - it creates the **remedies**.

Without registration	With registration (filed in time)
You cannot file an infringement lawsuit at all. Since <i>Fourth Estate v. Wall-Street.com</i> (Supreme Court, 2019) you need an actual registration in hand, not merely a pending application.	You can sue. Expediting a registration later, mid-dispute, costs an \$800 "special handling" surcharge on top of the filing fee.
You can recover only your <i>actual</i> damages and the infringer's profits - which you must prove, and which for a pre-launch app may be close to zero even in a blatant case.	Statutory damages of \$750 to \$30,000 per work, rising to \$150,000 per work if the infringement was willful. No need to prove a dollar of loss.
You pay your own attorney, win or lose. This is usually what makes a case not worth bringing.	Attorney's fees may be awarded. This is the provision that turns a cease-and-desist letter into something a recipient acts on.
-	The certificate is <i>prima facie</i> evidence that the copyright is valid and that the facts in it are true, if registered within five years of first publication.

The timing rule that decides everything

Under 17 U.S.C. section 412, statutory damages and attorney's fees are **not available** for any infringement that began *before* you registered - with one exception: if you register within **three months of first publication**, you are covered retroactively back to the date of publication.

So the whole strategic point is: **register before you launch widely, or within three months of doing so**. Register late and someone who copied you in month four is beyond the reach of the remedies that matter, permanently. That window does not reopen.

3. Decide what you are registering

Rounds Codex is not one work. It is a computer program, a large body of written medical text, a set of illustrations, and a compilation - and the Copyright Office treats those differently. You cannot register "a website" as such; you register the copyrightable content of it, as it existed on a particular date.

Component	What it counts as	Office guidance
index.html, sw.js, the build scripts	Computer program (a literary work)	Circular 61
content/*.json - the 181 conditions, 300 drugs, 1,308 resident entries, quizzes, 470 guidelines	Literary work, and/or a compilation or database	Circulars 65 and 66
The 800 gallery pages	Pictorial / visual arts work	Circular 40
The site as a whole	Compilation - your selection and arrangement	Circular 66

A practical starting point

For most people in your position the sensible first filing is **one Standard Application covering the website content as of a fixed date**, naming yourself as author of the text and the selection and arrangement, and disclaiming the AI-generated material. Then, if the code itself matters commercially, a second filing for the computer program.

Two things to know before you choose:

- A registration covers the work **as deposited on that date**. It does not cover later updates. A site you revise weekly cannot be kept perfectly covered by one filing - people usually register at meaningful milestones (launch, then major releases) rather than chasing every change.
- The **Single Application** (\$45) is only for one work, by one author, who is also the sole claimant, not made for hire. If anyone else contributed copyrightable expression, or you are registering several works together, you need the **Standard Application** (\$65).

Are you "published"?

This determines which form, which deposit, and when your three-month clock starts - and it is genuinely unsettled for websites. The Office's general position is that publicly posting a work so that copies can be downloaded is publication; merely displaying it may not be.

Right now your site is behind an unlisted URL and is set to noindex. That is arguably still unpublished. The moment you launch, it is published. **This is the single best question to put to an attorney**, because getting it wrong on the form is a misstatement of fact.

4. Filing, step by step

Budget about 60 to 90 minutes for a first filing. You can save and return to a draft.

Step 1 - Create your account

Go to **copyright.gov** and choose "Registration Portal", then the Electronic Copyright Office (eCO). Register for an account. Use an email address you will still have in ten years - the Office writes to you at it if an examiner has questions, and an unanswered query can close your case.

Step 2 - Start a Standard Application

From your eCO home screen choose "Register a Work" then "Standard Application". Do not use the Single Application unless you are certain your filing meets all four of its conditions (one work, one author, one claimant, not for hire).

Step 3 - Type of Work

Choose based on what you decided in section 3. For the website content filing choose **Work of the Visual Arts** if illustrations dominate, or **Literary Work** if text does. For a code filing choose **Literary Work** - computer programs are literary works in copyright law, which surprises everyone.

Step 4 - Titles

Give a clear, specific title, and be consistent with it forever - this is what you will cite in any dispute. Something like:

- *Rounds Codex - Website Content, Version of [date]*
- *Rounds Codex - Computer Program, Version of [date]*

Step 5 - Publication

Answer the published / unpublished question, and if published give the exact date of first publication and the nation. See the callout above - decide this deliberately rather than guessing.

Step 6 - Authors

Add yourself. Under "Author Created", tick only what a human actually authored - for example *text*, *compilation*, *editing*, and *artwork* only where the artwork is genuinely yours. Do not tick a category that describes AI output.

If you want to keep your home address off a public record, you may give an alternative address; registration records are searchable by anyone.

Step 7 - Claimant

This is who owns the copyright now - you personally, or your company if you have assigned it. If a company is the claimant and you are the author, you must state how it obtained ownership ("by written agreement").

Step 8 - Limitation of Claim: the AI disclosure

The most important screen in the application, and the one people skip.

- **Material excluded** - identify what you are *not* claiming. This is where AI-generated illustrations and AI-drafted question text go. Also exclude any third-party material: quoted guideline text, borrowed images, licensed fonts.
- **New material included** - state affirmatively what is yours. For example: *"text authored by the applicant; editorial revisions; compilation, selection, coordination and arrangement of all material."*

Write these two fields out in advance, in plain language, from the human-versus-AI list you made in section 1. If you are unsure how to phrase it, this is the moment to call an attorney rather than to guess.

Step 9 - Pay

Card or ACH. The fee is non-refundable even if registration is refused.

Step 10 - Upload the deposit

Because you are filing electronically you upload files rather than mailing anything. What to upload depends on what you are registering:

Registering	What to upload
Computer program	The first 25 and last 25 pages of source code as a single PDF. If the program is under 50 pages, all of it. You may redact trade secrets - Circular 61 sets out exactly how much you may block out and still have a valid deposit.
Website content	A PDF or capture of the content as it appeared on the date claimed. Not a link - the Office will not visit your site. Print the pages to PDF, or export the content files.
Illustrations	Image files of the works claimed, clearly identified, and only those that are human-authored.

Keep an exact copy of everything you deposited. If you ever have to enforce this, the deposit is the thing that defines what you registered.

Step 11 - Submit, then wait

You will get a case number immediately - keep it. Electronic filings are currently taking roughly two to nine months when nothing is queried, longer if an examiner writes to you. **Your legal protection dates from the date you filed a complete application, not from the date the certificate arrives.** So the waiting time does not cost you the section 412 window - filing on time is what matters.

5. Fees

Current electronic filing fees. Confirm at copyright.gov/about/fees.html before paying.

Application type	Fee	When it applies
Standard Application (electronic)	\$65	The normal choice. Multiple works, multiple authors, or work made for hire.
Single Application (electronic)	\$45	One work, one author, that author is the only claimant, not made for hire. Strict.
Group of unpublished works	\$85	Up to 10 unpublished works in one filing.
Group of published photographs	\$55	Up to 750 photographs. Photographs, not artwork.
Paper application (Form CO)	\$125	Slower and dearer. No reason to use it.
Special handling surcharge	+\$800	Expedites examination, for pending or prospective litigation. Avoidable by filing early.

A realistic budget

Two Standard Applications - one for the website content, one for the code - is **\$130** and covers the great majority of what matters. An attorney to review the AI disclosure and the publication question before you file is typically a one-to-two hour consultation. That is the whole cost of doing this properly.

6. Your patent question

Your instinct is right, and for a more specific reason than "it is not a new idea".

The subject-matter problem

Under *Alice Corp. v. CLS Bank* (Supreme Court, 2014), a claim directed to an abstract idea - which includes organising, storing, presenting and retrieving information - is not patent-eligible merely because it is carried out on a computer. "Present medical reference material to a clinician, on a phone, with a quiz" is close to the centre of what *Alice* excludes. Applications of this shape are routinely rejected under 35 U.S.C. section 101, before novelty is even reached.

The disclosure problem, which may already have run

Even setting *Alice* aside, there is a deadline you should know about:

- **United States.** You have a **one-year grace period** from your own first public disclosure, sale or offer for sale. If the site has been publicly reachable, that clock may already be running.
- **Almost everywhere else.** Most countries apply **absolute novelty** - any public disclosure before filing destroys the right, with no grace period at all. Foreign patent rights in anything already disclosed are likely gone.

What would be worth asking about

- A **design patent** can protect the ornamental appearance of a graphical user interface. It is narrow - it protects how it looks, not what it does - but it is real, cheaper than a utility patent, and granted much faster.
- If you ever build something genuinely technical - a novel scheduling algorithm, a real method for something - that is a different conversation. Nothing in the app today looks like that to me.

The honest summary on patents

A utility patent here would likely cost \$10,000-\$20,000 or more in attorney and Office fees, take two to four years, and stand a poor chance of surviving a section 101 rejection. **I would not spend the money.** Copyright plus trademark protects what is actually valuable about Rounds Codex, at a tiny fraction of the cost.

7. What you should do instead: trademark

You did not ask about this, but it is the protection most worth having and the one people leave until someone else has taken the name.

Copyright protects the *content*. It does not stop a competitor calling their product "Rounds Codex". A trademark does, and it is the asset that compounds as the brand becomes recognised. You now have two registrable marks:

- The word mark **ROUNDS CODEX** - which protects the name in any typeface, and is the stronger of the two.
- The **RC shield design** you have just finished - registrable as a design mark.

Filing is through the USPTO's TEAS system at **uspto.gov**, roughly \$250 to \$350 per class of goods or services (confirm the current schedule - the fee structure changed recently). The classes that likely apply are **Class 9** for downloadable software, **Class 41** for educational services, and **Class 42** if you offer it as a hosted service.

If you have not launched yet you can still file, on an *intent to use* basis, which reserves your priority date from the day you file rather than the day you start trading. Search the register first for conflicts - that search is the part worth paying an attorney for.

One thing you already got right

Every gallery page carries the Rounds Codex lockup in the header and roundscodex.com in the footer. That does not prevent copying, but it makes any stolen page self-identifying and makes provenance trivial to prove. Do not let a future template change remove it.

8. Checklist

#	Do this	Before
1	Write down which parts of the content are human-authored and which are AI-generated. Nothing else can be filled in honestly until this exists.	Everything else
2	Decide whether the site is "published" - and if you are unsure, ask an attorney. It sets your three-month clock.	Filing
3	Freeze a version. Export the content and code exactly as of one date and archive it as your deposit copy.	Filing
4	Create the eCO account at copyright.gov .	Filing
5	File Standard Application 1 - website content. \$65.	Wide launch
6	File Standard Application 2 - computer program, deposit redacted per Circular 61. \$65.	Wide launch
7	Search the trademark register, then file ROUNDS CODEX (word mark), intent-to-use if not yet trading.	Announcing the name
8	Turn on Netlify password protection until launch. Registration is a remedy after the fact; a password is the only thing that actually prevents the copying.	Sharing the URL
9	Diarise a re-registration at each major release. One filing does not cover later versions.	Ongoing

Useful sources

Circular 1	Copyright Basics
Circular 61	Copyright Registration of Computer Programs - deposit and redaction rules
Circular 66	Copyright Registration of Websites and Website Content
Circular 65	Copyright Registration of Automated Databases
Circular 40	Copyright Registration of Pictorial, Graphic, and Sculptural Works
88 Fed. Reg. 16190	Copyright Registration Guidance: Works Containing Material Generated by Artificial Intelligence (16 March 2023) - the AI disclosure rule
copyright.gov/about/fees.html	The current fee schedule. Check it before paying.
uspto.gov	Trademark filing (TEAS) and the searchable register.

All circulars are free PDFs at copyright.gov/circls. Prepared for Dr. Kreithen, 3 August 2026. General information only - not legal advice, and not a substitute for an attorney on the three judgement calls flagged in sections 1 and 3.